

CHAPTER 29.

An Act to grant money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans.

[31st July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Grants for
public
works.

1.—(1) There may be issued by the National Debt Commissioners for the purpose of local loans by the Public Works Loan Commissioners, any sum or sums not exceeding in the whole the sum of twenty million pounds.

50 & 51 Vict.
c. 16.

Certain
debts not to
be reckoned
as assets of
local loans
fund.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of these loans comes into operation, and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

2. Whereas it is expedient that the principal of the local loan specified in the table contained in the Schedule to this Act should, to the extent specified in the last column of that table, not be reckoned as an asset of the local loans fund established under the National Debt and Local Loans Act, 1887 :

Now, therefore, the principal of the said loan to the extent aforesaid and the said sum shall be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

Remission
of arrears
of principal
and interest
in respect of
Eyemouth
Harbour
loan.

1 Edw. 7.
c. 35.

3. Whereas in pursuance of an agreement made in the year eighteen hundred and ninety-two the sum of ten thousand pounds was advanced by the Public Works Loan Commissioners to the Eyemouth Harbour Trustees on the security of the harbour revenues with the collateral security of the Fishery Board for Scotland :

And whereas by an arrangement confirmed by section three of the Public Works Loans Act, 1901, the

liability of the Eyemouth Harbour Trustees in respect of the said loan was extinguished without prejudice to the liability of the Fishery Board for Scotland to repay the said loan, and in consequence thereof the said collateral security is the sole security for the repayment of the said loan :

And whereas the terms of the said collateral security are embodied in a memorandum of agreement between the Secretary for Scotland and the Public Works Loan Commissioners, dated the eleventh day of March, eighteen hundred and ninety-two, whereby a portion of the surplus herring brand fees as defined in clause three of the said memorandum was pledged in security for the repayment of the said loan with interest by the instalments and at the times mentioned in the security given by the Eyemouth Harbour Trustees for the said loan, and it was provided that the said portion of the surplus herring brand fees of any one year should only be applicable to the repayment of one-fiftieth part of principal and interest on outstanding principal falling due under the security for the said loan in the same year, and should not be applicable to the repayment of arrears of principal :

And whereas the said portion of the surplus herring brand fees so pledged as aforesaid was in the year ending the thirty-first day of March, nineteen hundred and twenty-three, insufficient to discharge in full the instalment of principal with interest which fell due under the security for the said loan in that year, and the principal sum of two hundred pounds with interest amounting to one hundred and thirty-one pounds seventeen shillings now remains unpaid, and under the terms of the said memorandum of agreement is irrecoverable :

Now, therefore, the said principal sum of two hundred pounds shall be extinguished, and the said arrears of interest amounting to one hundred and thirty-one pounds seventeen shillings shall be remitted.

4. This Act may be cited as the Public Works Short title. Loans Act, 1923.

SCHEDULE.

LOANS BY THE PUBLIC WORKS LOAN COMMISSIONERS.
 LOAN UNDER THE HARBOURS AND PASSING TOLLS ACT, 1861.
 . (24 & 25 Vict. c. 47.)

Name of Borrower.	Amount of Loan.	Amount to be written off.
Eyemouth Harbour Trustees -	£ 10,000	£ 200

CHAPTER 30.

An Act to extend temporarily the powers of the Minister of Transport with respect to the authorisation of railway works.

[31st July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension
of powers
under s. 16
of the
Railways
Act, 1921,
11 & 12
Geo. 5. c. 55.

1. Where application is made by a railway company under section sixteen of the Railways Act, 1921, for authority to provide any alteration, extension or improvement of existing works, the Minister may, by order under that section, notwithstanding anything therein contained, authorise the construction of the works if the expenditure involved will not exceed five hundred thousand pounds:

Provided that in the case of any order by the Minister under that section or under section seventeen of the said Act, authorising the alteration, extension, or improvement of works involving an expenditure exceeding one hundred thousand pounds—

(a) the order shall not come into force until it has been laid before each House of Parliament for a period of not less than twenty-one days